

Superior Court of the State of California
County of Orange

TENTATIVE RULINGS
DEPARTMENT C27
JUDGE BRADLEY ERDOSI

LAW AND MOTION IS HEARD ON MONDAYS AT 2:00 P.M.

Tentative Rulings: The Court endeavors to post tentative rulings on the Court's website by 10:00 a.m. on the date of the afternoon hearing. However, ongoing proceedings or other pressing matters may delay the posting of tentative rulings. Additionally, tentative rulings may not be posted in every case. Please **do not** call the department for tentative rulings if tentative rulings have not been posted. The Court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on Tentative Rulings: If all counsel intend to submit on the Court's tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5227. Please do not call the department unless **all** parties submit on the tentative ruling. If all sides submit on the Court's tentative ruling and so advise the Court, the tentative ruling will become the Court's final ruling and the prevailing party is ordered to give notice of the ruling and prepare an order for the Court's signature, if appropriate, under Cal. R. Ct. 3.1312.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **not** typically provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it is the party's responsibility to provide a court reporter.

Parties must comply with the Court's policy on the use of privately retained court reporters, which can be found by accessing the following link:

https://www.occourts.org/system/files?file=privately_retained_court_reporter_policy.pdf

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<https://www.occourts.org/divisions/court-reporter-services/availability-court-reporters>

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also may make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department C27 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to CCP §367.75 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's civil video appearance website at <https://www.occourts.org/civil-remote-hearings> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. The Court's policies and procedures, including Guidelines for Remote Proceedings are available at <https://www.occourts.org/general-information/news-events/covid-19-response/civil-covid-19-response> and will be strictly enforced. A helpful video detailing how to check-in and appear by video can be found at <https://www.youtube.com/embed/CU090y2oaWM?rel=0&autoplay=1>.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and OCLR 180.

TENTATIVE RULINGS

August 31, 2026

	Case Name	Tentative
101	2023-01351239 Harris vs. Shops at Mission Viejo, LLC	Motion for Summary Judgment and/or Adjudication Cross-Complainant Shops at Mission Viejo, LLC's ("Shops") motion for summary adjudication as to its 6th cause of action for declaratory relief in its Cross-Complaint against Cross-Defendant Welltower Mission Viejo Medical Center JV, LLC ("Welltower") is denied. Where plaintiff (or cross-complainant) seeks summary judgment/adjudication, the burden is to produce admissible evidence on each element of a "cause of action" entitling him or her to judgment. (CCP § 437c(p)(1); see <i>Hunter v. Pacific Mechanical Corp.</i> (1995) 37 CA4th 1282, 1287, 44 CR2d 335, 337 (citing text) (disapproved on other grounds in <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 C4th 826, 107 CR2d 841); <i>S.B.C.C., Inc. v. St. Paul Fire & Marine Ins. Co.</i> (2010) 186 CA4th 383, 388, 112 CR3d 40, 44.) This means that plaintiffs who bear the burden of proof at trial by a <i>preponderance</i> of evidence must produce evidence that would require a reasonable trier of fact to find any underlying material fact <i>more likely than not</i>. "(O)therwise, he would not be entitled to judgment <i>as a matter of law</i>." (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 C4th 826, 851, 107 CR2d 841, 862 (emphasis in original); <i>LLP Mortg. v. Bizar</i> (2005) 126 CA4th 773, 776, 24 CR3d 598, 601—burden is on plaintiff to <i>persuade</i> court there is no triable issue of material fact.) Defendant has <i>no evidentiary burden</i> until plaintiff produces admissible (and undisputed) evidence on <i>each element</i> of a cause of action. Until that time, plaintiff has not met its burden of producing evidence, and defendant therefore has no burden to oppose. (See CCP § 437c(p)(1)). Shops and Welltower are parties to a lease agreement, which includes the following pertinent provision: <u>Section 11.6 Indemnification.</u> (a) Indemnification by Tenant. Except as provided in Section 11.3 and <u>except to the extent due to the negligence of Landlord or Landlord's agents or employees, Tenant shall indemnify, hold harmless, and, defend Landlord</u>, its agents, employees and mortgagee, if any, from and against any and all liability, liens, claims, demands, damages, expenses, fees, costs, reasonable attorney's fees and litigation costs, fines, penalties, suits, proceedings, actions and causes of action of any and every kind and nature (excluding consequential damages, special damages or punitive damages) arising or growing out of or in any way connected with Tenant's use, occupancy, management or control of the Premises or Tenant's operations, conduct or activities in the Center. (Cross-Complaint, ¶ 9 [Emphasis added].) Shops states that on 3/22/24, pursuant to the Lease, it requested Welltower defend Shops in this action. (SSUF No. 16.) Despite repeated follow-up efforts, Welltower has failed to

accept Shops' tender of defense. (SSUF No. 17.)

Shops argues that because it was sued by Plaintiff, stemming from an incident at the Subject Premises leased and controlled by Welltower, it is entitled to a defense by Welltower pursuant to Section 11.6 of the Lease.

In opposition, Welltower notes that Section 11.6(a) of the Ground Lease obligates Welltower to indemnify and defend Shops "except to the extent due to the negligence of Landlord or Landlord's agents or employees." (SSUF 8.)

Shops submitted no evidence with its motion that forecloses the possibility of a finding of its own negligence, or that of its agents/employees. Plaintiff Gina Harris' First Amended Complaint alleges that Shops negligently owned, controlled, managed, and maintained the Subject Premises and failed to warn of a dangerous condition. (FAC, Prem.L-2, Prem.L-3.) While Shops denies these allegations, Welltower correctly argues that this is not sufficient evidence to negate this specific carve out in the lease agreement. (Shops SSUF #14.)

In Reply, Shops argues that the carve out in the lease provision for its own negligence limits its right to indemnity, but not its right to a defense, citing *UDC-Universal Dev., L.P. v. CH2M Hill* (2010) 181 Cal.App.4th 10, in which the Court of Appeal held that the duty to defend arose when the claims were stated against the indemnitee and was not limited to an ultimate finding of negligence (as opposed to a duty to indemnify. (*Id.* at 21-22.)

Shops additionally cites to *Crawford v. Weather Shield Mfg., Inc.* (2008) 44 Cal.4th 541, in which the general contractor (GC) hired Weather Shield ("WS") to make windows for the project. The contract included a provision requiring WS "to indemnify and save [GC] harmless against all claims for damages ... growing out of the execution of [WS's] work," and "at [its] own expense to *defend any suit or action* brought against [GC] *founded upon* the claim of such damage..." (*Id.* at 547-548; italics in Opinion.)

The California Supreme Court ruled that a contract under which a sub agreed "to defend any suit or action" against a developer "founded upon" any claim "growing out of the execution of the work" requires the sub to provide a defense to the developer even if the subcontractor was not negligent. (*Id.* at 568.)

The indemnity language in the contracts in both the *UDC-Universal* case and *Crawford* are different and broader than the language contained within the lease in this case.

In *UDC-Universal*, the Agreement separated the indemnity and defense obligations, stating with respect to the duty to defend that "Consultant agrees, at his own expense and upon written request by Developer or Owner of the Subject Property, to defend any suit, action or demand brought against Developer or Owner on any claim or demand covered herein." (*UDC-Universal Development, L.P., supra*, 181 Cal.App.4th at 18-19.)

While there is a negligence carve out for the indemnity provision, there is no such carve out for the defense provision.

Similarly in *Crawford*, the subcontract contained no carve-out for the indemnitee's own negligence. The duty-to-defend clause there was unqualified, as cited above. (*Crawford, supra*, 44 Cal.4th at 557-559.)

Section 11.6(a) here contains an express exception for claims arising from Landlord's own negligence for both the duty to indemnify and the duty to defend: "except to the extent

		due to the negligence of Landlord or Landlord's agents or employees, Tenant shall <u>indemnify, hold harmless, and, defend</u> Landlord...” As the Court in <i>Crawford</i> states, the parties “may agree that the promisor's indemnity and/or defense obligations will apply only if the promisor was negligent, or, conversely, even if the promisor was not negligent,” and that in interpreting such a provision, “[e]ffect is to be given to the parties' mutual intent [], as ascertained from the contract's language if it is clear and explicit...” (<i>Crawford</i>, 44 Cal.4th at 551–552.) The lease language here is not vague, unclear or subject to multiple interpretations. On the contrary, it is straightforward and provides that if Shops/its agents/its employees are negligent, then Welltower does not have an unequivocal duty to defend it from claims resulting from that negligence. Based on this, the motion for summary adjudication is denied as there is a triable issue of material fact as to whether Shops’ negligence contributed to Plaintiff’s alleged damages thus alleviating Welltower of its duty to defend. Cross-Defendant Welltower shall give notice.
103	2019-01083328 Tian vs. Feng	Application Plaintiff and Judgment Creditor Li Tian’s application for issuance of an order to show cause why an order should not issue for the sale of the residential real property known as 3334 Nearbrook Lane, Riverside, CA 92503, APN: 138-460-044-8 (the “property” or “dwelling”) is granted. [ROA #358.] The Court will issue the proposed OSC submitted by Judgment Creditor and set the OSC for October 5, 2026 at 2:00 p.m. in Department C27. Facts In this action, the Court entered an amended judgment in Judgment Creditor’s favor against defendants and judgment debtors Jingtao Feng and Juan Cao. [ROA #329.] An abstract of the judgment was recorded in Riverside County real property records on October 1, 2025. [Cheng Decl. (ROA #358), ¶13 and Ex. 2.] A writ in the amount of \$456,067.43 was levied against the property by the Orange County Sheriff’s Civil Process Department. [Cheng Decl., Exs. 4 and 5.] The Orange County Sheriff’s Office provided notice to the Judgment Debtors of the levy on 5/1/26. [Cheng Decl., Ex. 5.] Judgment Creditor filed her application for sale on 5/20/26 – within 20 days of notice to Judgment Creditors. [ROA #364.] Judgment Creditor’s application is supported by the Cheng Declaration, which sets forth that: -The records of the Tax Assessor of the County in which the Subject Property is located indicate that there is no current homeowner's exemption or disabled veteran's exemption for the dwelling. [Cheng Decl., ¶ 10.] -on information and belief, the property is not currently being used as a homestead as Debtor testified at trial that he moved back to China with no intention of returning, a

finding of fact that was included in the judgment. [Cheng Decl., ¶ 11 and Ex. 1.]

-The judgment is not based upon a consumer debt. [Cheng Decl., ¶ 12.]

Legal Standard

California law provides that the interest of a natural person in a dwelling may not be sold to enforce a money judgment except under a court order obtained under Article 4 of Title 9 of the Code of Civil Procedure “and the dwelling exemption shall be determined under this article.” Code Civ. Proc. §704.740(a).

After a dwelling is levied upon, the levying officer must serve notice on the judgment creditor that the levy has been made and that the property will be released unless the judgment creditor complies with the requirements of Code Civ. Proc. §704.750. Code Civ. Proc. §704.750(a). **Within 20 days after service of the notice, the judgment creditor must apply to the court for an order for sale of the dwelling** and file a copy of the application with the levying officer. Code Civ. Proc. §704.750(a).

The application for order of sale must be made under oath, describe the dwelling, and contain the following information:

- a statement whether the records of the county tax assessor indicate that there is a current homeowner’s exemption or disabled veteran’s exemption for the dwelling and the person or persons who claimed any such exemption.
- a statement, which may be based on information and belief, as to whether the dwelling is a homestead and the amount of the homestead exemption, if any, and a statement whether the records of the county recorder indicate that a homestead declaration that describes the dwelling has been recorded by the judgment debtor or the spouse of the judgment debtor.
- a statement of the amount of any liens or encumbrances on the dwelling, the name of each person having a lien or encumbrance on the dwelling, and the address of such person used by the county recorder for the return of the instrument creating such person's lien or encumbrance after recording.
- a statement that the judgment is based on a consumer debt, as defined in subdivision (a) of Section 699.730, or that the judgment is not based on a consumer debt, and if the judgment is based on a consumer debt, whether the judgment is based on a consumer debt that was secured by the debtor's principal place of residence at the time it was incurred or a statement indicating which of the exemptions listed in subdivision (b) of Section 699.730 are applicable. I

Code Civ. Proc. §704.760.

Upon the filing of the application by the judgment creditor, the court must set a time and place for hearing and order the judgment debtor to show cause why an order for sale should not be made in accordance with the application. Code Civ. Proc. §704.770(a). The time set for the hearing must be within 45 days of the filing of the application or such later time as the Court orders upon a showing of good cause. Code Civ. Proc. §704.770(a).

Once the hearing date is set, the judgment creditor must do both of the following at least 30 days before the time set for hearing:

- serve on the judgment debtor, either by personal service or by mail, a copy of the order to show cause, a copy of the application of the judgment creditor, and a copy of the notice of the hearing in the form prescribed by the Judicial Council;
- personally serve a copy of these same documents on an occupant of the dwelling or, if there is no occupant present at the time service is attempted, post a copy of each document in a conspicuous place at the dwelling

		Code Civ. Proc. §704.770(b). Discussion Judgment Creditor’s application was timely filed within 20 days of the Sheriff’s notice of levy to Judgment Debtors. Code Civ. Proc. §704.750(a). [Cheng Decl., Ex. 5; ROA #364.] The application is essentially under oath as it is supported by the Cheng Declaration, which, as described above sets forth information required by Code of Civil Procedure section 704.760. [See Cheng Decl., ¶¶ 3, 4, 10-12 and Exs. 1 and 3.] Accordingly, the Court will issue the requested order to show cause.
104	2023-01325570 Mom CA Investco, LLC vs. 247 Hotels Beverage, LLC	Motion to Be Relieved as Counsel or Record The motion of G&B Law, LLP, by James R. Felton, counsel of record for Cross-Defendant Cantor Group IV, LLC, for an order relieving it as counsel for Cross-Defendant is granted. [ROA #549.] Counsel is ordered to submit a revised order with the new next hearing date. Upon the signing of the order, counsel shall serve the signed order on Cross-Defendant and all parties that have appeared. Counsel will be relieved as counsel of record for Cross-Defendant effective upon the filing of the proof of service of the signed order upon Cross-Defendant and all other parties. Cross-Defendant cannot appear without counsel. A licensed attorney must represent a business entity. (<i>Paradise v. Nowlin</i> (1948) 86 Cal.App.2d 897, 898; <i>Roddis v. Strong</i> (1967) 250 Cal.App.2d 304, 311; see Bus. & Prof. Code, § 6125.) Failure to retain an attorney may lead to striking of the pleadings, among other actions. The Court sets a status conference re: Cross-Defendant’s retention of new counsel for February 8, 2027 at 10:00 a.m. in Department C27. If Cross-Defendant does not appear through counsel at the next hearing, the Court will issue an OSC re: obtaining counsel or striking of answer. Counsel for Cross-Defendant is ordered to give notice.
105	2025-01477589 Bian vs. Ford Motor Company	Motion for Judgment on the Pleadings Defendant Ford Motor Company’s motion for judgment on the pleadings is granted in part and denied in part. The motion is granted with 15 days leave to amend as to the first and second causes of action in Plaintiff Kuo Bian’s complaint; it is denied as to the third cause of action. Moving party is ordered to give notice.
107	2025-01515687 Horner vs. Kia America, Inc.	Motion – Other The motion by Defendant Kia America, Inc. (“Defendant”) for an order maintaining the confidential designation applied to documents produced in Defendant’s initial disclosures pursuant to CCP section 2031.060, subdivision (b) and the protective order between the parties is granted in part and denied in part.

Defendant produced documents pursuant to CCP section 871.26, subdivision (h) and designated some of the responsive documents as confidential pursuant to the parties stipulated protective order. Plaintiff Jeffrey Horner ("Plaintiff") objected to the confidential designation of some of the documents. Pursuant to the parties' protective order, Defendant seeks an order maintaining Defendant's confidential designation pursuant to CCP section 2031.060, subdivision (b) of the following category of documents: motor vehicle information report/specifications; warranty transaction history; Kia connect case reports and customer care case reports; service policies and procedures; and warranty extensions or modifications.

Plaintiff's objections to Doudar's declaration are overruled.

Plaintiff's objections to Mendoza's declaration are overruled.

Defendant's objection number 1 to Sanchez's declaration is sustained. Defendant's remaining objections to Sanchez's declaration are overruled.

"The court, for good cause shown, may make any order that justice requires to protect any party or other person from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. This protective order may include, but is not limited to, one or more of the following directions:

- (1) That all or some of the items or categories of items in the demand need not be produced or made available at all.
 - (2) That the time specified in Section 2031.260 to respond to the set of demands, or to a particular item or category in the set, be extended.
 - (3) That the place of production be other than that specified in the demand.
 - (4) That the inspection, copying, testing, or sampling be made only on specified terms and conditions.
 - (5) That a trade secret or other confidential research, development, or commercial information not be disclosed, or be disclosed only to specified persons or only in a specified way.
 - (6) That the items produced be sealed and thereafter opened only on order of the court."
- (Code Civ. Proc., § 2031.060, subd. (b).)

"If the motion for a protective order is denied in whole or in part, the court may order that the party to whom the demand was directed provide or permit the discovery against which protection was sought on terms and conditions that are just. (Code Civ. Proc., § 2031.060, subd. (g).)

"The burden is on the party seeking the protective order to show good cause" for the order sought. (*Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255, citing *Goodman v. Citizens Life and Casualty Insurance Company* (1967) 253 Cal.App.2d 807, 819.) To establish good cause, the moving party must provide "a factual exposition of a reasonable ground for the sought order." (*Goodman v. Citizens Life and Casualty Insurance Company*, 253 Cal.App.2d at 819.)

In determining whether to issue a protective order, the Court "may fashion an order in light of the equities of the case and the interests of justice." (*Brigante v. Huang* (1993) 20 Cal.App.4th 1569, 1588 [disapproved of on other grounds by *Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973].)

		Defendant showed good cause to maintain the confidentiality of the following category of documents: motor vehicle information report/specifications; service policies and procedures; and warranty extensions or modifications. (Mendoza Decl., ¶¶ 6, 8, and 10.) Plaintiff did not show Defendant waived its right to maintain the confidential designation of these documents. Defendant's motion to maintain the confidentiality of the documents produced reflecting the motor vehicle information report/specifications (KA/HORNER000938), service policies and procedures (KA/HORNER000753-KA/HORNER000928), and warranty extensions or modifications is granted. Defendant did not show good cause to maintain the confidential designation of the warranty transaction history documents and Defendant's connect case reports and customer case reports produced in response to CCP 871.26, subdivision (h). Defendant's motion to maintain the confidentiality of these documents is denied. The Court notes Defendant described the documents produced in relation to warranty extensions or modifications as KA/HORNER000934-9370, which would include the documents described as produced in response to warranty transaction history, KA/HORNER000939-KA/HORNER000959. Defendant should be prepared to discuss whether the warranty extensions or modifications includes KA/HORNER000934-KA/HORNER0009370 or KA/HORNER000934-KA/HORNER000937. Defendant shall give notice.
108	2025-01488153 Ashouri vs. Khosravi Mortgage	1. Motion to Strike Portions of Complaint 2. Case Management Conference Defendants Khosravi Mortgage's, Farhad Khosravi's, and Fariba Partovi Yazdi's motion to strike portions of Plaintiff Mahmood Ashouri's Second Amended Complaint is granted with 15 days leave to amend. A court may strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule or an order of the court. Code Civ. Proc. § 436. "Irrelevant" matters include: allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc. § 431.10(b).) A motion to strike can also strike legal conclusions. (<i>Weil & Brown</i>, Cal. Prac. Guide, <i>Civil Proc. before Trial</i>, ¶ 7:179 (2010).) Conclusory allegations are permitted, however, if they are supported by other factual allegations in the complaint. (<i>Perkins v. Superior Court</i> (1981) 117 Cal.App. 3d 1, 6.) The same liberal policy regarding amendments that applies to the sustaining of demurrers applies for motions to strike. If a defect may be correctible, leave to amend should usually be given. (<i>Velez v. Smith</i> (2006) 142 Cal.App.4th 1154, 1174.) Defendants move to strike Plaintiff's claim for punitive damages stated in the Prayer for Relief. Civil Code § 3294 provides that punitive damages may be awarded in an action for breach of an obligation not arising from contract, if the plaintiff proves by clear and convincing

		evidence that the defendant has been guilty of oppression, fraud, or malice. At the pleading stage, the complaint must allege facts supporting circumstances of oppression, fraud, or malice. (<i>Grieves v. Superior Court</i> (1984) 157 Cal.App.3d 159, 166 (“The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. [Citation] Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim. [Citation].”).) Plaintiff acknowledges that he cannot obtain punitive damages based on his breach of contract claim alone. He argues that his cause of action for declaratory relief is not limited to contract interpretation and may sound in tort. Plaintiff is incorrect. Not only is a declaratory relief claim not a tort claim, but Plaintiff’s specific declaratory relief claim only requests relief based on the parties’ contract. As it currently stands, there are no allegations in the Second Amended Complaint that support punitive damages. (See <i>Rattagan v. Uber Technologies, Inc.</i> (2024) 17 Cal.5th 1, 20 (“punitive damages are never recoverable for breach of contract, no matter how willful or malicious, except where the wrongful act is also a tort.”) [internal citations omitted].) Plaintiff references his pending Motion for Leave to File a Third Amended Complaint which contains a third cause of action for willful violations of the California Financing Law. (Plaintiff’s Ex. A.) Without evaluating the merits of the proposed pleading, as a tort, this claim arguably could support a claim for punitive damages. Accordingly, the Court grants Defendants’ motion, but will allow Plaintiff the opportunity to amend to state allegations to support his claim for punitive damages. In light of the above, Plaintiff’s motion for leave to amend scheduled for December 21, 2026 at 2:00 p.m. in Department C27 is moot and hereby vacated. The case management conference is continued to February 22, 2027 at 10:00 a.m. in Department C27. Defendants are ordered to give notice.
111	2025-01497932 Roushanzamir vs. Thune	1. Demurrer - Other 2. Case Management Conference The hearing on Cross-Defendant Ali Roushanzamir’s Demurrer to Cross-Complaint is continued to 12/28/2026 at 2:00 p.m. in Department C27. The case management conference is continued to the same date and time. The Court notes that the proof of service for the demurrer reflects an incorrect email address for Cross-Complainants’ counsel. The proof states that opposing counsel was served at “brian@<u>bccceq</u>.com”; however, the email address of record for counsel is “brian@<u>bccesq</u>.com.” Given the lack of opposition, the Court cannot confirm whether the demurrer was actually received by Cross-Complainants’ counsel. Additionally, the declaration attached to the Demurrer does not demonstrate compliance with the meet and confer requirement of CCP section 430.41, which require a declaration stating either of the following:

		(A) The means by which the demurring party met and conferred with the party who filed the pleading subject to demurrer, and that the parties did not reach an agreement resolving the objections raised in the demurrer. (B) That the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith.” (Code Civ. Proc., § 430.41, subd. (a)(3).) Cross-Defendant is ordered to file and serve a corrected proof of service and the requisite meet and confer declaration by 12/02/2026. Otherwise, the Court intends to take the demurrer off calendar. The Clerk shall give notice of the ruling.
112	2025-01486130 Caruso vs. State of California	1. Demurrer to Amended Complaint 2. Motion to Strike Portions of Complaint 3. Case Management Conference Continued to September 23, 2026 at 8:30 a.m.
113	2021-01204953 Yang vs. Evan Paul Motorcars	1. Motion to Be Relieved as Counsel of Record 2. Motion to Be Relieved as Counsel of Record 3. Order to Show Cause re: Monetary Sanctions 4. Trial Setting Conference The motions of Troy Schell and John Nuelle, of Schell Nuelle, LLP, to be relieved as counsel of record for Evan Paul EA Auto Leasing, LLC and Evan Paul Auto Holdings, LLC, are granted. Counsel is ordered to submit revised orders with the new next hearing date. Upon the signing of the orders, Schell Nuelle, LLP shall serve the signed orders on the clients and all parties. Schell Nuelle, LLP will be relieved as counsel of record for Evan Paul EA Auto Leasing, LLC and Evan Paul Auto Holdings, LLC, effective upon the filing of the proofs of service of the signed orders upon the clients and all parties. Evan Paul EA Auto Leasing, LLC and Evan Paul Auto Holdings, LLC are advised they cannot represent themselves in this litigation. A licensed attorney must represent a business entity. (<i>Paradise v. Nowlin</i> (1948) 86 Cal.App.2d 897, 898; <i>Roddis v. Strong</i> (1967) 250 Cal.App.2d 304, 311; see Bus. & Prof. Code, § 6125.) Failure to retain an attorney may lead to striking of the pleadings, among other actions. The Court sets a status conference re: Defendants’ retention of new counsel for February 8, 2027 at 10:00 a.m. in Department C27. If Defendants do not appear through counsel at the next hearing, the Court will issue an OSC re: obtaining counsel or striking each answer. The OSC is discharged. The trial setting conference is continued to February 8, 2027 at 10:00 a.m. in Department C27. Schell Nuelle, LLP shall give notice of the ruling.